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From self-determination to service delivery: Assessing Indigenous inclusion in municipal governance in Canada

Abstract: Over half of Canada's Indigenous identity population reside in urban centres. Despite their growing numbers, Indigenous Peoples remain under represented in municipal government. While it has been argued that all levels of government have responsibility for urban Indigenous Peoples, neither the federal government nor the provinces have provided direction regarding their representation in urban centres. The local response to urban Indigenous input has emerged over the past ten years in the form of Aboriginal advisory boards in some municipalities. While these nascent entities provide a bridge to Indigenous Peoples to access municipal government, they fall short of providing them with governance models recommended in various consultations with Indigenous Peoples over the past twenty years. This article argues that over time models of representation are being overshadowed by policies of service delivery for urban Indigenous Peoples in Canada.

Sommaire : Au Canada, plus de la moitié de la population d'identité autochtone habite dans les centres urbains. Malgré leurs nombre croissants, les Autochtones demeurent sous-représentés au sein des gouvernements municipaux. En dépit de l'affirmation que la responsabilité envers les Autochtones urbains incombe à tous les paliers de gouvernement, ni le gouvernement fédéral, ni les provinces n'ont donné de directives concernant leur représentation dans les centres urbains. Au cours des dix dernières années, la réponse locale à la contribution des Autochtones urbains est apparue sous la forme de conseils consultatifs autochtones dans certaines municipalités. Même si ces entités naissantes créent un pont pour que les peuples autochtones puissent accéder au gouvernement municipal, elles ne sont pas en mesure de leur fournir les modèles de gouvernance recommandés lors des diverses consultations avec les Autochtones ayant eu cours depuis vingt ans. Cet article fait valoir qu'au fil du temps, les modèles de représentation sont éclipsés par les politiques de prestation des services pour les Autochtones urbains du Canada.

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Urban Indigenous Peoples is the term generally used to describe all Aboriginal peoples (status and non-status Indian, Métis and Inuit) who live in urban centres in Canada. Over 1.4 million individuals, or 4.3 per cent of Canada's population, identify as Indigenous, over half of which live in urban centres. The Indigenous population is growing faster compared to the non-Indigenous population. Between 2006 and 2011 the Indigenous population grew by twenty per cent compared to six per cent for the non-Indigenous population (Statscan 2011). The Indigenous population is also younger. More than twenty-eight per cent of the Indigenous population is under fourteen years compared with thirteen per cent of the non-Indigenous population (The Environics Institute 2010). Despite their growing numbers in urban centres, Indigenous Peoples remain under represented in municipal government.

While it has been argued that all levels of government have responsibility for urban Indigenous Peoples, neither the federal government nor the provinces have provided direction regarding their representation in urban centres (Peters 2011). The local response to urban Indigenous input has emerged over the past ten years in the form of Aboriginal advisory boards in some municipalities. Known as Aboriginal Relations Offices or Aboriginal Advisory Committees, these bodies serve a consultative role, act as a liaison to their communities and facilitate Indigenous awareness programs with local government (Heritz 2016). While these nascent entities provide a bridge to Indigenous Peoples to access municipal government, they fall short of providing them with governance models recommended in various consultations with Indigenous Peoples over the past twenty years. This article argues that over time models of representation are being overshadowed by policies of service delivery for urban Indigenous Peoples in Canada. The article commences with conceptualizations of representation and urban Indigenous Peoples in Canada, followed by a timeline of policies that provide context for representation of Indigenous Peoples in local government. First, it traces policy decisions that impacted on Indigenous representation generally, then urban Indigenous representation specifically. Next it demonstrates how policy decisions over the past twenty years have shifted from models of urban representation to those of service delivery, followed by a discussion of the dual role of the voluntary sector as policy actors and representatives for urban Indigenous Peoples. The analysis that follows assesses potential challenges to current models of urban Indigenous representation considering recent court decisions, followed by the conclusion.

Urban Indigenous representation

Urban Indigenous representation, for this study, encompasses a definition of urban Aboriginal, personal and cultural continuity, self-determination,

and refers to the articulation of group interests within identifiable policy networks by members, many of whom are affiliated with Indigenous voluntary organizations. This conceptualization highlights the tension between accommodating Indigenous autonomy in decision-making processes and how these policies prioritize service delivery over time.

Andersen provides a definition of “*urban Aboriginal* - as a distinctive and equally legitimate form of Aboriginal identity” (2013: 47) that consists of twelve elements. There is no particular order of the elements that shape the distinctiveness of the urban Aboriginal experience. Economic elements include: economic marginalization; and a growing professional/middle class. Aboriginal identity elements include: cultural diversity; legal diversity; status blindness; urban Aboriginal institutions; and distinctiveness of urban Aboriginal policy ethos. Social elements include: the character of informal networks; attachment to non-urban communities; struggles over the political representation of urban Aboriginals; racism/social exclusion; and place(s) of Aboriginal women in urban Aboriginal social relations (pp. 51–63). While community characteristics are unique to each urban centre, Andersen identifies commonalities that comprehensively conceptualizes the urban Indigenous experience across Canada.

Indigenous representation addresses how this politically under-represented group address their individual and community needs and interests in policy processes. This notion is based on the premise that choice—in terms of adhering to traditional or to mainstream lifeways, to varying degrees—is crucial to “build the case that a secure sense of personal and cultural continuity are necessary conditions for personal or cultural identity” (Chandler and Lalonde 2009: 223).

Due to their political under representation, when Indigenous Peoples are included in policy processes, they are usually represented by executives of Indigenous voluntary organizations

Self-determination (Ladner 2009) is operationalized to assess the gains Indigenous Peoples have achieved to identify their problems (Hedican 2008) and make choices in regard to their goals in policy processes. This approach counters Canadian federalism and its view that federal and provincial governments have been assigned responsibilities for Indigenous Peoples. Indigenous communities, in turn, see the Indigenous-Crown relationship differently: “Rather than viewing themselves as stakeholders or junior governments, they argue that Aboriginal communities should be treated as full and equal partners in the federation, operating on a nation-to-nation basis with the Crown” (Alcantara and Spicer 2016: 184). By defining and determining their communities, urban Indigenous Peoples will move closer to

self-determination. For example, the Toronto Aboriginal Research Project (TARP) commissioned by the Toronto Aboriginal Support Services Council (TASSC) has developed a “community of interest” model of self-government that is representative of Indigenous social service agencies, their Boards of Directors and their membership (McCaskill, FitzMaurice, and Cidro 2011: 38). In its recommendations for urban Indigenous governance TARP acknowledges that their model must extend beyond the social service sector to the broader Indigenous community of Toronto.¹

Indigenous Peoples are politically under-represented in municipal government. “The residential schools, the educational system, the police and legal systems, and child and family services stand out as institutions that played a central role in constructing them as the ‘other’” (Silver 2006: 36). High poverty rates, low levels of educational attainment, inadequate preparation for the job market and poor health contribute to the risk of social exclusion for urban Indigenous Peoples (Salée 2006: 5). This demonstrates how colonization impacted on the collective ability of Indigenous Peoples to advocate not only for their traditional ways, but also to transcend colonization by becoming self-determining. Despite the significant urban Indigenous population, only a few have been elected as city councillors in large prairie cities, and as of 2012 cities like Saskatoon had not elected a First Nation member to city council (Walker and Belanger 2013: 208). Within the administration of local government, planning “scarcely engages in relational processes with Aboriginal peoples” (Walker and Belanger 2013: 196). Due to their political under representation, when Indigenous Peoples are included in policy processes, they are usually represented by executives of Indigenous voluntary organizations.

Historical background

Tracing the relationship between government and Indigenous Peoples for contextual purposes, reaches back to the nineteenth century. The *Constitution Act 1867* that created Canada gave the federal government jurisdiction over “Indians and the Lands reserved for the Indians,” which was interpreted to authorize Parliament to pass laws that directly related to Indigenous Peoples. The provinces were given jurisdiction over public lands, health, welfare, education and municipal institutions (Graham and Peters 2002: 5). The fact that provincial constitutional responsibilities did not include Indians, but did include municipal responsibilities, would have future implications for federal/provincial jurisdictional disputes regarding Indigenous Peoples as they increasingly transitioned to cities starting in the twentieth century.

Canadian cities developed in locations used by Indigenous Peoples as gathering places. Over time, they were systematically dislocated from urban

centres, moved to reserves located considerable distances from urban centres and original habitations. In Ontario, for example, the Mississauga territory along the north shore of Lake Ontario was acquired by the British through land surrenders that included the 1787 Toronto Purchase. Colonial policy made the Mississaugas dependent on the Crown, disrupted their political relations with neighbouring Six Nations and destroyed their hunting and fishing through settler poaching, sawmill development and colonial agriculture (Freeman 2010: 24). And in Manitoba, for example, settlement by Europeans proved contentious to the Métis, the initial inhabitants of Red River (present day Winnipeg). The Métis were dispossessed from their settlements due to expropriation to accommodate spreading urban boundaries (Newhouse and Peters 2003: 6).

The *Indian Act* was passed in 1876 as part of the federal constitutional responsibility for “Indians” and “Indian lands” based on policies that believed they could not manage their own affairs. Indians were sequestered on reserves, located far away from urban centres (Peters 2001: 58). The aspects of the act that would eventually impact on migration to urban centres was state control over their status both as citizens and as Indians. Indians for the most part were not considered citizens and the *Indian Act* provided means by which they could become citizens. For instance, when an Indian obtained a university education, their status was relinquished (Warry 2007: 34). Marriage to non-Indians also impacted on status. When an Indian woman married a non-status man, she lost her Indian status as would her children. However, an Indian man did not lose status if he married a non-status woman and his wife and their children acquired Indian status (Palmater 2011). The impact of status is addressed in the discussion of Bill C-31 and Bill C-3, below.

The *Constitution Act 1867* and the *Indian Act 1876* were instrumental in establishing the status of and division of, responsibilities for Indigenous Peoples.² Although the *Constitution Act 1867* delegated responsibility for Indians to the federal government, over time they relinquished their responsibility: first to the Métis; second to non-Status Indians as set out in the *Indian Act*; and third to Indigenous Peoples residing off reserve. The federal government allocated primary service delivery responsibilities to the provinces through an amendment to the *Indian Act* in 1951 (Morse 1989: 70). In doing so, the federal government acknowledged that its obligations for Indians were limited to reserves. Therefore, responsibilities for Indigenous Peoples off-reserve remained with the provinces, with exceptions only for post-secondary education and those with physical or mental handicaps requiring specialized assistance (Morse 1989: 71). Federal responsibility, with few exceptions, did not extend to Indigenous Peoples living in urban centres.

The city as home

Over time more Indigenous Peoples consider the city their home with as many as 70 per cent indicating they never moved back to their home community after moving to the city (The Environics Institute 2010: 34).

In the case of Toronto, Indigenous Peoples came to Toronto from reserves to further their education and find work starting in the 1920s (Howard 2011: 91). By the 1960s, when they moved from reserves to larger cities like Toronto, Hamilton, or Thunder Bay, they discovered that they qualified for few jobs because of their limited education and little or no vocational skills. Racial discrimination was another aspect of the urban migration. Although the Ontario government enacted anti-discrimination legislation Indigenous Peoples experienced: "refusal of accommodation and restaurant services; eviction from rental housing without due process; reluctance to hire Indians; and most frustrating of all, bureaucratic delays and lack of interest on the part of both provincial and federal governments" (McCue 1994: 387). Their increased migration to urban centres gave rise to social and political responses.

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Friendship centres were established to assist Indigenous Peoples with their urban transition by meeting the cultural, social and recreational needs (Manitowabi 2011: 111) and serving as the focal point of Indigenous community building (Howard 2011). They were also instrumental in providing some of their members with opportunities to acquire the knowledge and skills required to become program and service delivery administrators (Graham and Kinmond 2008). When the Canadian Indian Centre of Toronto (renamed Native Canadian Centre of Toronto (NCCT)) was formed in 1962, it became the third friendship centre in Canada after Winnipeg in 1958 and Vancouver in 1963 (formerly the Vancouver Indian Centre Society, which originated in 1954). Toronto's centre was originally funded by the federal Department of Citizenship, City of Toronto, churches and organizations such as the Order of the Daughters of the Empire. Friendship Centre services originally included hospital visitation, court services, alcohol abuse counselling, housing assistance, Ojibway language classes, youth sports and recreation programs and assisting newcomers orient themselves to Toronto (Obonsawin and Howard-Bobiwash 1997: 31–35). In 1972 the implementation of the federal government's Migrating Native Peoples Program formally recognized Friendship Centres (NAFC 2012: 1) and the National

Association of Friendship Centres (NAFC) was established as a unifying link for the Friendship Centre Movement and to advocate the concerns of Indigenous Peoples (Hanselmann, Dinsdale, and Brazeau 2005: 7).

Increasing Indigenous migration to cities (in 1959, seventeen per cent of Registered Indians lived off-reserve and by 1996 forty-two per cent lived off-reserve) (Peters 2002: 54) spurred an interest in academic writing. Statistical surveys about Indigenous Peoples in Winnipeg, Regina and Saskatoon were conducted by the Institute of Urban Studies, University of Winnipeg at the beginning of the decade, but relatively little was published on urban Indigenous Peoples after 1985 (p. 55). Statistical surveys published by the Institute of Urban Studies in Winnipeg in the 1990s demonstrated low incomes and high levels of unemployment. The main factors differentiating urban Indigenous Peoples from the urban poor were the services required to adapt to urban life, the degree of their poverty and the extent of their housing needs. Public service organizations were inadequate in meeting the needs of urban Indigenous Peoples because of their assimilationist objectives, limited target groups, unclear mandates and uncertain funding (pp. 59–60).

Bill C-31, the 1985 amendment to the *Indian Act*, witnessed an estimated increase of thirty-five per cent in the number of registered Indians (Clatworthy 2003: 85), many of whom resided in urban centres. The bill attempted to correct gender bias that retained status for Indian men and their families when he married a person without status, yet disenfranchised Indian women and their children if she married a person without status (Howe 2006: 10). More people applied for reinstatement than predicted which pressured bands to recognize new members and their eligibility for housing and post-secondary education (Graham and Peters 2002: 7). The passing of Bill C-31 therefore failed to enfranchise all applicants and in some cases, limited status to current generations while disfranchising future generations. The passage of *Gender Equity in Indian Registration Act* in 2011, commonly referred to as Bill C-3, still failed to remedy the discrepancies in Bill C-31. What is significant about Bill C-3 is its attempt to eliminate the one Indian parent stipulation from Bill C-31. As much as Bill C-3 seeks to eliminate gender bias against women, it continues to entrench gender bias against Indigenous women because Bill C-3 extends Indian status for one generation only (Palmater 2011: 47). As future generations lose their Indian status, they continue to identify as Indigenous and have significantly increased the urban Indigenous identity population.

The other event that impacted on urban Indigenous Peoples in the 1980s was the patriation of Canada's constitution. Section 35 of the *Constitution Act* 1982 acknowledges "the existing aboriginal and treaty rights of the aboriginal peoples of Canada" (Canada 1982). How Section 35 impacted on urban Indigenous Peoples was addressed in the Royal Commission on Aboriginal Peoples (RCAP) and is discussed next.

RCAP and urban Indigenous Peoples

In the aftermath of the Oka standoff between the people of Kahnawake and federal and provincial police, the federal cabinet established The Royal Commission on Aboriginal Peoples (RCAP) in 1991 (Abele and Graham 2011: 165) to “investigate the evolution of the relationship among Aboriginal peoples... the Canadian government and Canadian society as a whole” (1996 v1: 669). The first report published by RCAP was *Aboriginal Peoples in Urban Centres* in 1993, a discussion document that reported on the National Round Tables held in June 1992. The conclusion of the report identified the social problems faced by Indigenous Peoples in urban centres: “poverty, powerlessness, racism, joblessness, poor housing, family violence, abuse, AIDS, lack of child care and low education and literacy levels. These problems are widespread and severe” (RCAP 1993: 62).

RCAP also clarified that Section 35 of the *Constitution Act 1982* applies to provinces. Since municipal governments are created from provincial governments, Section 35 may be interpreted as being applicable to them as well (RCAPv2Part1 1996: 85–86). In other words, all levels of government have some constitutional responsibility for urban Indigenous Peoples.

*One of the most difficult aspects of urban life for
Indigenous Peoples is dealing with racism*

Of the five volume RCAP *Report* published in 1996, the chapter, “Urban Perspectives” in Volume Four reported on Indigenous Peoples in urban centres. RCAP identified four critical issues for urban Indigenous Peoples. The first critical issue involved challenges to their cultural identity. The extent to which Indigenous Peoples can maintain a positive cultural identity in urban centres will “significantly affect the survival of Aboriginal peoples as distinct peoples” (RCAPv4 1996: 522). RCAP stressed the importance of strong cultural foundations for healing and identity: “The key to the healing process lies in protecting and supporting all elements that urban Aboriginal people consider an integral part of their cultural identity: spirituality, language, a land base, elders, values and traditions, family and ceremonial life” (p. 533).

The second critical issue RCAP identified concerns regarding “exclusion from opportunities for self-determination” (RCAPv4 1996: 520). RCAP reported that a large-scale survey found that ninety-two per cent of respondents supported, “this effort to have Aboriginal people in urban areas run their own affairs” (p. 584). RCAP proposed systems for urban self-determination that included Indigenous Peoples in decision-making processes at a local level especially in those areas that are relevant to the acknowledgment, maintenance and preservation of Indigenous cultural identity. One proposal

was for a co-management governing system where institutions and services are established by various levels of government to serve the general population, with specific provisions for Indigenous participation established through enabling legislation or negotiated agreements. While RCAP admitted the co-management arrangement may afford urban Indigenous Peoples only limited opportunity to influence governance in urban centres, there are still important benefits that include having a voice in local government decision making and promoting greater understanding in relationships between non-Indigenous and Indigenous Peoples (p. 583). Another proposal was for a community of interest model where existing urban Indigenous organizations would be recruited to develop this new form of governance. The urban community would establish a city-wide body with political and administrative functions that would exercise self-government in various sectors and institutions within its urban boundaries. Community of interest governments would enter into agreements with Indigenous and other urban governments, to co-operate in the efficient delivery of services (p. 585).

The third critical issue for urban Indigenous Peoples RCAP identified was discrimination. Presenters and participants in learning circles reported they felt that racism and discrimination directed against them as Indigenous Peoples had a negative impact on their cultural identification. One of the most difficult aspects of urban life for Indigenous Peoples is dealing with racism (RCAPv4 1996: 520–27).

The fourth critical issue that RCAP found was “the difficulty of finding culturally appropriate services” (RCAPv4 1996: 520). The Commission not only recommended that Indigenous Peoples need and should have, culturally appropriate services, but in addition, they stated that they should be involved in the design of these services that promote a holistic approach to the healing of individuals and communities. The Commission reported that some mainstream agencies and municipal governments are relying more on Indigenous agencies to provide services because they cannot address the needs of urban Indigenous Peoples. This poses problems for Indigenous organizations that not only are underfunded, but operate on an ad hoc or short-term project-funding. In addition, challenges to staffing include programs that are understaffed, dependency on unpaid and untrained volunteers, staff and volunteer burn-out and administrators who spend more time seeking funding instead of delivering services (pp. 554–55). In summary, the critical issues for urban Indigenous Peoples in Canada, coming out of RCAP were: maintaining a strong cultural identity; self-determination and models of governance; discrimination; and accessing culturally appropriate services.

The immediate media reaction to RCAP quickly centred on the price tag for implementing the reforms it recommended. Annual allocations of two billion dollars would be required for building health centres, stimulating

the Indigenous economy, upgrading housing and building community centres (Feschuk 1996). While RCAP was successful in giving voice to Indigenous Peoples, it had limited impact on policy change (Inwood and Johns 2016).

The immediate federal response was the 1997 release of *Gathering Strength: Canada's Aboriginal Action Plan* (Canada 1997). The twenty-three-page document responded to urban Indigenous issues in two paragraphs. Under the heading "Urban Issues," the report recognized its need to respond to the "serious socio-economic conditions that many urban Aboriginal people are facing," by, "strengthening partnerships with provincial governments and Aboriginal groups to develop practical approaches for improving the delivery of programs and services to urban Aboriginal people" (Canada 1997: 7). Under the heading, "Recognizing the Inherent Right of Self-Government," the report stated, "Self-government processes for Métis and off-reserve Aboriginal groups exist in most provinces. In these processes, *the federal government is prepared to consider a variety of approaches to self-government, including self-government institutions, devolution of programs and services, and public government.* All of these initiatives provide opportunities for significant Aboriginal input into program design and delivery, and should ultimately lead to direct control of programming by Aboriginal governments and institutions" (p. 9, emphasis added).

By the end of the twentieth century the policy regarding urban Indigenous Peoples appeared to be shifting toward self-determination

By the end of the twentieth century the policy regarding urban Indigenous Peoples appeared to be shifting toward self-determination. The Constitution Act 1982 acknowledged Aboriginal peoples in Canada. RCAP recognized and made substantial recommendations for urban Indigenous representation that the federal government immediately responded to, but this response was short lived. Policy regarding urban Indigenous Peoples would shift from representation to policy implementation in the new millennium.

From policy innovators to policy implementers

Three years later, the federal government released *Gathering Strength: Canada's Aboriginal Action Plan—A Progress Report* (2000). The report noted that First Nations, Métis and Indigenous organizations in Regina, Saskatoon, Prince Albert, Edmonton and Calgary have, "initiated a number of community processes across Canada under the Urban Aboriginal

Strategy" (Canada 2000: 10). Unlike the 1997 report that recognized the inherent right of self-government, the progress report failed to include an urban Indigenous component in its discussion of self-government. Consequently, the second release of *Gathering Strength* illustrates the federal prioritization of the Urban Aboriginal Strategy (UAS) as a program and service delivery mechanism over developing processes for urban Indigenous self-government.

The Department of Indian Affairs and Northern Development, the Federation of Canadian Municipalities and the Indian Taxation Advisory Board created the Centre for Municipal Aboriginal Relations (CMAR) in 1996 with a mandate to promote municipal-Indigenous relations by conducting research and generating a database of agreements and effective practices. The Municipal-Aboriginal Adjacent Community Cooperation committee was formed in 2001 by CMAR. Although it was short lived, its mandate was to conduct research, identify examples of collaboration and address outstanding issues regarding reserves located in or near urban centres (Abele and Graham 2011: 169). In 2011 the Federation of Canadian Municipalities and the Department of Aboriginal Affairs and Northern Development Canada created the First Nations-Municipal Community Infrastructure Partnership Program (CIPP). The program was designed to provide resources to facilitate an interchange between the communities, targeting both hard services (water provision and wastewater collection and fire protection) and soft services (policing, parks and libraries). While CIPP has witnessed increasing Indigenous-municipal partnerships across Canada (Alcantara and Nelles 2016), it should be noted that these arrangements are between municipalities and First Nations *adjacent* to urban centres, CIPP's reach does not extend to most Indigenous Peoples who reside *within* municipalities.

Urban Aboriginal Strategy

Coming out of RCAP and supported by the Sgro Task Force on Urban Issues, the Urban Aboriginal Strategy (UAS) emerged in the late 1990s. Although the federal government primarily regarded its mandate to First Nation on reserves, the UAS was designed to recommend and develop pilot projects that would enable greater alignment with programs conducted at all levels of government.

The UAS initiated its program in thirteen cities whose combined Indigenous population represented more than twenty-five per cent of Canada's total Indigenous population (Vancouver, Prince George, Lethbridge, Calgary, Edmonton, Prince Albert, Regina, Saskatoon, Winnipeg, Thompson, Thunder Bay, Toronto and Ottawa). The UAS started in 1998 with a four year fifty million dollar program (Abele and Graham 2011: 169) to partner with other governments and community organizations

in response to the needs of urban Indigenous Peoples in three project priority areas: improving life skills; promoting job training, skills and entrepreneurship; and supporting Indigenous women, children and families and project priorities continue in the present day (INAC 2016). The UAS was instrumental in bringing policy actors together to identify, what many of them referred to as “gaps” in programs. It illustrates the preference of the federal government to allocate urban resources on program and service delivery.

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Urban Aboriginal Peoples Study

The *Urban Aboriginal Peoples Study* (UAPS) by The Environics Institute provides an overview of urban life for urban Indigenous Peoples that supports increased Indigenous participation in their issues and interests. The UAPS went beyond the indicators that measure marginalization to inquire about the “values, experiences, identities and aspirations of urban Aboriginal peoples” with a focus on the future rather than the past (2010: 6).

According to UAPS, urban Indigenous Peoples are more positive about their Indigenous identity than at any time in the past (The Environics Institute 2010: 42–48). Two-thirds of those surveyed indicated that they themselves or a family member were a student at a residential school or a provincial day school and half indicated that the residential school experience has had some impact in shaping their lives today (p. 55). Most of those interviewed had contact with the Canadian criminal system either as a witness to or a victim of a crime, or have been arrested or charged with a crime (p. 97). They strongly support alternative justice approaches because many feel they would reduce Indigenous crime rates, improve their confidence in the justice and improve community safety (p. 102). Support of traditional healing practices (which includes spirituality, relation to the land and strength of Indigenous identity) were felt to be more important than access to mainstream health care for the majority of Indigenous participants (p. 116). They have negative experiences with non-Indigenous services (financial institutions, health system, schools, social assistance programs, employment services, social housing and child welfare system) that include racism or discrimination, disrespect, judgmental staff, rudeness and lack of empathy.

A large majority of Indigenous Peoples believe it is very important to have Indigenous services and this is considered to be most important for addiction programs, child and family services and housing services (pp. 81–85). Fewer than half of the respondents indicated that Indigenous organizations represent them well and there was a three-way tie that indicated Indigenous political organizations, Canadian political parties and no one political organization, best represents them (p. 95). However, more than half of urban Indigenous Peoples engage in Indigenous and mainstream political systems. The higher Indigenous political involvement the more likely they vote in Canadian elections. The UAPS disclosed “a healthy and vibrant Aboriginal civil society appears to facilitate voice both within Aboriginal and Canadian elections” (p. 86).

In the absence of a political system that gives voice to urban Indigenous Peoples, the UAPS assesses the Indigenous urban experience. UAPS confirms that urban Indigenous Peoples are positive about their identity, prefer traditional healing and justice services and face negative experiences and discrimination in their daily lives. The UAPS also confirms the desire of Indigenous Peoples to be represented in urban governance. This section has traced the evolution of urban Indigenous Peoples in Canada, with emphasis on how policy decisions have impacted on their under representation. In this next section, the role of the third sector advocacy for urban Indigenous Peoples is examined.

Urban Indigenous Peoples and the third sector

With reforms starting in the 1980s, responsibility for policy implementation was increasingly downloaded by the state to the voluntary sector. In the absence of municipal political representation, leaders of Indigenous organizations took on a dual role to represent Indigenous communities in policy processes. As voluntary organizations assume greater responsibilities acting as service providers, advocates and policy actors, their place within the governance framework becomes more complex, further complicating their relationship with the communities that need their support, resources and services. This representational arrangement, while beneficial for policy implementation, falls short of addressing legal decisions and commission recommendations to give Indigenous Peoples voice. In the absence of a specific federal or provincial government departments specifically for urban Indigenous Peoples, program and service implementation requires contact with multiple departments at various levels of government. Compounding the absence of program coordination is the scope of services considered essential for Indigenous Peoples that includes: training programs, employment opportunities and mentorship, healing, language and identity

programs, early childhood and family services and life skills. "Moreover, policy development must consider formal recognition of Aboriginal 'special status' and rights...These realities suggest the need to maintain the coexistence of programs and service delivery arrangements tailored specifically to Aboriginal people even as Aboriginal people are encompassed within more general federal and provincial programs" (Wotherspoon 2003: 192).

In the Canadian provinces, urban Indigenous Peoples are usually represented in policy processes by leaders of various Indigenous organizations who advocate on their behalf. The term "voluntary organizations" encompasses a broad range of domestic and international organizations including nonprofit and nongovernment organizations. In public policy literature, voluntary organizations are also referred to as the "third sector" to distinguish them from the private and public sectors (Laforest 2011: 144). Third sector organizations have delegated responsibility for the service delivery of programs which may have been formerly carried out by government. The range of capacity of third sector organizations varies greatly from organizations that are solely involved in the service delivery of a particular government program to large, multifaceted organizations that function as policy actors. The proximity of these organizations to their client base shifts the traditional government-citizen balance in such a way that third sector organizations, to various degrees, may advocate on behalf of their clients (Phillips 2003: 24).

Advocacy and the third sector

Despite the debate over the role of third sector, it remains restricted in its mandate. Government restrictions present several challenges that impact on the policy capacity and advocacy role of the third sector. First, organizations incorporated as charities are restricted in their advocacy activities by Canadian charities legislation. Canadian tax rules require that voluntary organizations provide service delivery rather than orient themselves toward public policy. Under common law, political purposes are not considered charitable, therefore an organization will not qualify for charitable registration if at least one of its purposes is political. Revenue Canada has interpreted this to mean "to persuade the public to adopt a particular view on a broad social question" or attempt "to bring about or oppose changes in the law or government policy" (Pross and Webb 2003: 95). The federal government has ensured that "charities" will be prevented from participating in advocacy, even as they are expected to deliver more services (Smith 2005: 143).

Second, securing project funding from the federal and provincial governments exacts a heavy toll on the time and energy of group leaders who

are the same individuals who have the necessary background for advocacy work (Pross and Webb 2003: 110).

Third, is the increase in work load of organizations due to reporting and accountability requirements. The *Lobbyists Registration Act* and the *Canada Elections Act* do not impose a regulatory burden on the advocacy activities of groups, but they have implications for the treatment of groups as registered charities and as recipients of government funds.

Fourth, is the shift to evidence-based policy in the voluntary sector as a preferred instrument for government of accountability and consistency. While organizations are considered engaged in policy-making, this participation prioritizes collecting data over articulating the interests of their clients (Laforest and Orsini 2005: 482).

A final challenge to third sector advocacy is acknowledging that advocacy for urban Indigenous Peoples creates a fundamental challenge to the public service's standard practices of public administration. Social movements and bureaucratic norms are sometimes replicated in the public service. So, while public servants adhere to the neutrality of public administration, social agencies may, on the other hand, orient themselves to the needs of Indigenous Peoples. Malloy explains: "This reveals a new dimension of the colliding worlds of public administration and social movements, demonstrating just how inherent role conflict and ambiguity are in special policy agencies" (2003: 112). So far, this article has traced how government policies generally contributed to the under representation of urban Indigenous Peoples and how policy implementation reforms specifically shifted the role of the third sector as their voice in policy processes. The next section discusses urban Indigenous representation in context of commission recommendations.

Mapping political representation

Urban Indigenous Peoples across Canada are not represented by one specific political organization due to geographic considerations and the varying categories of urban Indigenous organizations (Peters 2011: 17). However, attempts have been made to organize off-reserve Indigenous Peoples, many of whom reside in urban centres.

Formed in 1968 when they separated from the National Indian Brotherhood (NIB) (present day Assembly of First Nations (AFN)), the Native Council of Canada (NCC) was created as a national rights-based organization to represent the interests of Indigenous Peoples living off-reserve. In 1983 the prairie Métis broke from the NCC to form the Métis National Council and in 1994 the NCC changed its name to the Congress of Aboriginal Peoples (CAP). CAP "now comprises an uneasy alliance of urban and off-reserve Aboriginal people, non-prairie Métis, non-Status and C-31 Aboriginal

people" (Donovan 2011: 138–9). As a national First Nations organization, the AFN has little involvement with urban First Nations issues. One attempt was its General Assembly's resolution to create an Urban Issues Secretariat in 1999 that never transpired (Peters 2011: 17).

Urban reserves are another example of collaboration between municipalities and First Nations across Canada. "Urban reserves are satellites to principal reserves located elsewhere and have typically been acquired on a willing buyer-willing seller basis in the real estate marketplace, often with financial resources derived from land claim settlements" (Walker and Belanger 2013: 205). There are more than 120 urban reserves operating across Canada, with most of them located in Manitoba and Saskatchewan (p. 206). Urban reserves have been created, subject to federal approval, "to accommodate industrial and commercial ventures and social service agencies, especially those providing services in the fields of education and health" (Barron and Garcea 1999: 5). Like Municipal-Indigenous agreements, urban reserves are First Nation entities and as such are not representative of other Indigenous Peoples within a municipality.

The recent Daniels decision by the Supreme Court of Canada has the potential to challenge Indigenous representation. What Daniels does is affirm that the term "Indian" includes Non-Status Indians and Métis (Daniels v. Canada 2016). What is significant about non-status Indians and Metis is that a significant number of them reside in urban centres across Canada. The long term impact of the Daniels decision and how federal responsibility for urban Indigenous Peoples will impact on their representation, remains unclear (Macdougall 2016).

The United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), adopted by the General Assembly in 2007 and by the Canadian government in 2010 has a direct role in supporting self-determination for urban Indigenous Peoples, particularly Article 4 and its reference to: "Indigenous Peoples, in exercising their right to self-determination, have the right to autonomy or self-government in matters relating to their internal and local affairs, as well as ways and means for financing their autonomous functions" (UN 2008).

Conclusion

Urban Indigeneity is a distinctive identity that frames Indigenous determination for personal and cultural continuity. However, their under representation in municipal government in Canada challenges their self-determination for a variety of reasons. Canada's constitution gave responsibility for Indigenous Peoples to the federal government, but that responsibility would not reach, for the most part, to Indigenous Peoples who migrated to urban centres. Over time the Indian Act focused mostly on Indians on reserves.

Amendments to the Act, namely Bills C-31 and C-3, were admittedly problematic, but it also impacted on a growing number of urban women and their children who identified as Indigenous upon regaining their status.

RCAP was instrumental in recommending governance structures for urban Indigenous Peoples. RCAP determined that all levels of government have some constitutional responsibilities for urban Indigenous Peoples. These recommendations were made against the backdrop of reforms to policy implementation that would impact on all service organizations across Canada. For urban Indigenous Peoples, government restructuring impacted on their representation. The federal government has prioritized a reliance on service providers to speak on behalf of Indigenous communities at the expense of building on models of urban governance recommended by RCAP.

RCAP also addressed critical issues for urban Indigenous Peoples that included: challenges to their cultural identity; exclusion from opportunities for self-determination; discrimination; the difficulty of finding culturally appropriate services. Twenty years later, the UAPS confirmed that these issues are still relevant. However, Indigenous Peoples had mixed responses as to whether political parties or Indigenous political organizations best represent them.

There are governance structures in municipalities, but they do not represent all Indigenous Peoples. Agreements made between First Nations and government (federal and municipal) regarding adjacent or urban reserves are increasing over time. While arrangements provide autonomy for First Nations and arguably benefit urban Indigenous Peoples, they do not represent all of them.

The recent Daniels decision challenges the under representation of urban Indigenous Peoples by acknowledging federal responsibility for Métis and non-status Indians, most of whom reside in urban centres. This presents a timely challenge to Indigenous and non-Indigenous Peoples and all levels of government to assess how Indigenous Peoples will have their issues and interests addressed in municipal government going forward.

Notes

- 1 "That a broad-based group of Aboriginal organizations undertake a series of meetings to discuss the idea and feasibility of establishing Aboriginal urban self-government in Toronto. That discussions be initiated between urban Aboriginal organizations in partnership with the three levels of government with a view of exploring the idea of Aboriginal self-government in Toronto" (McCaskill et al. 1994: 39).
- 2 "This division of responsibilities and the establishment of all municipalities as creations of provincial statute put in place major elements of the urban Aboriginal public policy maze. This maze was made significantly more difficult to navigate by the federal government's Indian Act and by its interpretation of section 91(24). Passage of the first *Indian Act* in 1876

put in place a regime of distinctions among Aboriginal Peoples that politically, administratively and viscerally divide Aboriginal people to this day ... As federal policy developed, Métis were separated from "Indians" and their rights were extinguished through the issuing of scrip (certificates that could be exchanged for land or money) ... The federal government has historically taken the policy position that its section 91(24) responsibilities relate to Indians *on* land reserved for Indians, rather than all Status Indians on or off reserve and, after 1939, to Inuit. Furthermore, it has been loath to extend its reach of action to non-Status Indians or Métis" (Graham and Peters 2002: 5–6).

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